

2010/11 human right

3. Which one of the following is true about the similarities and differences between restrictions to and derogations from human rights provisions?

- A. A restriction suspends the right whereas derogation limits its application.
- B. Both are necessary evils at all times and in all places.
- C. Restrictions are perpetual in character whereas derogations are temporal.
- D. Restrictions are justified by the rights of others alone whereas derogations might be made to protect the constitutional order.
- E. None of the above

4. Which one of the following is true about classification of human rights?

- A. It helps in prioritizing one right over the other.
- B. We have universal standards to classify human rights.
- C. It might be considered as a reflection of ideological controversies in human rights standard setting.
- D. It mainly serves for academic purposes without any effect of prioritization.
- E. C and D are correct.
- F. All of the above are correct

Section II: Say true if the statement is correct and false if the statement is in correct? (5%) (One Point Each)

1. Human rights provisions of regional constitutions in Ethiopia can deviate from their federal counterpart so long as they provide a better protection.

2011/12

16. One of the following international instruments was an express demonstration of a general consensus by states on the indivisibility, inter-dependence, and universal nature of human rights.

- A. The Vienna Convention on the Law of Treaties.
- B. The Universal Declaration of Human Rights.
- C. The Vienna Declaration and Programme of Action.
- D. The International Covenant on Economic, Social and Cultural Rights.
- E. The Millennium Declaration.

17. Which one of the following can be considered as an exception to the principle of progressive realization provided under Article 2 of the ICESCR?

- A. The prohibition of non-discrimination in the provision of socio-economic rights. B. The Minimum Core obligations.
 - C. The obligation to refrain from deliberate retrogressive measures.
 - D. The obligation to provide. E. All except D
18. One of the following rights could be regarded as a third generation human right.
- A. The right to education. B. Freedom of expression.
 - C. The right to clean environment.
 - D. Freedom from torture. E. None.
19. One of the following is not the feature of a federal political system.
- A. Division of power by a constitution
 - B. Establishment of two tiers of government
 - C. Provision for the designated representation of distinct interests usually through the second chamber.
 - D. A written supreme constitution that can only be amended by the consent of a significant proportion of the constituent units.
 - E. None.

2012/13

16. One of the following does not describe the nature of human rights?
- A. All human rights are applicable equally in all countries.
 - B. Rights are considered equally important and there is no hierarchy in terms of importance.
 - C. The existence of human rights does not depend on the socio-political system of a state.
 - D. Compared to other subjects, the advent of human rights is relatively recent.
 - E. All of the above.
17. One of the following is a non-derogable right under the FDRE Constitution?
- A. The right to life.
 - B. Freedom from torture.
 - C. The right to bail.
 - D. Freedom of expression.
 - E. None.
18. One of the following is not true about the Ethiopian Human Rights system?
- A. The Ethiopian Human Rights Commission is the only organ legally empowered to implement human rights.

- B. The FDRE Constitution guarantees the three generations of human rights.
 - C. The FDRE Constitution allows the application of international human rights instruments.
 - D. Economic and social rights are constitutionally recognized.
 - E. None of the above.
19. One of the following is not one of the cardinal principles of the rights of the child?
- A. Affirmative Action.
 - B. The principle of non-discrimination.
 - C. The best interests of the child.
 - D. The right to life, survival and development.
 - E. Respect for the views of the child.
20. One of the following is not true about the African Human Rights system?
- A. Socio-economic rights are justiciable under the African Charter on Human and Peoples' Rights.
 - B. The African Commission on Human and Peoples' Rights has the competence to receive individual communications.
 - C. Third generation human rights are recognized under the African Charter on Human and Peoples' Rights. *
 - D. The African Commission on Human and Peoples' Rights can give binding decisions.
 - E. All of the above are not true.
1. What are the legal prerequisites to get refugee protection in international human rights law? (5%)

2013/14

11. One of the following is **not** a sufficient ground for federal government to declare an emergency law under the FDRE Constitution.
- A. An external invasion.
 - B. A break-down of law and order which endangers the constitutional order and can be controlled by the regular law enforcement agencies and personnel.
 - C. A natural disaster or an epidemic.
 - D. A and C
 - E. A and B
12. Which of the following rights cannot be derogated from in Ethiopia even in emergency situations?
- A. Right to life.
 - B. Immunity from torture.
 - C. Right to be recognized as a person before the law.
 - D. Band C.
 - E. All.
16. Of the following one is not the defining feature of human rights.

- A. Human rights are the birth rights of all human beings.
 - B. Human rights are founded on the respect for human dignity and worth of human person.
 - C. Human rights are entitlements which can be given or taken away.
 - D. Human rights are inviolable.
 - E. None
17. Which one of the following historical documents contributed to evolution of human rights?
- A. *Magna Carta* which was adopted in 1215 in England.
 - B. The American Declaration of Independence (1776).
 - C. The French Declaration on the Rights of Man and Citizens.
 - D. All.
 - E. None.
18. A violation of one right will often affect other rights. This assertion goes in line with the concept of:
- A. The principle of indivisibility
 - B. The principle of universality
 - C. The principle of inviolability
 - D. The principle of inalienability
 - E. All.
19. One of the following is not true about the Ethiopian human rights system.
- A. Ethiopia has ratified various international human rights instruments.
 - B. Ethiopia has established national human rights institutions.
 - C. Ethiopia has recognized human rights comprehensively in its Constitution.
 - D. All.
 - E. None.

1. How does the African Charter on Human and Peoples' Rights differ from other human rights treaties? (9%)

2014

15. Of the following one is not true about the United Nations Charter.
- A. the Charter has given recognition to the notion of equality, dignity and worth of each and every human person.
 - B. the Charter has made reference to human rights without real articulation of human rights.
 - C. Human rights provisions of the Charter can be described as scattered, terse and cryptic.
 - D. All of the above.
 - E. None of the above
16. Mechanisms established by the Commission on Human Rights and assumed by the Human Rights Council to address either specific country situations or thematic issues in all parts of the world are said to be:
- A. Individual Complaint.
 - B. Special Procedures.
 - C. State report.
 - D. Shadow report
 - E. None of the above.

1. Apart from the UN human rights system, regional human rights systems have been developed under the auspices regional intergovernmental organizations. Write a short e say (in not more than 15 lines) on

the advantages of having regional human rights systems in the presence of international system. **Essay type**

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17. Which one of the following can be considered as an exception to the principle of *progressive realization* provided under Article 2 of the ICESCR?

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- B. The Minimum Core obligations.
- C. The obligation to refrain from deliberate retrogressive measures.
- D. The obligation to provide.
- E. All except D

18. One of the following rights could be regarded as a third generation human right.

- A. The right to education.
- B. Freedom of expression.
- C. The right to clean environment.
- D. Freedom from torture.
- E. None.

2008

10. Which one of the following statements is true about the notion of human rights?

- A. Human rights are founded on the dignity and worth of human person.
- B. The basis of human rights is the consent of governments.
- C. Human rights are violable.
- D. All sovereign states can provide the same level of protection to human rights.
- E. All types of human rights have the same level of acceptance by states.

11. While some human rights instruments are legally binding, others are not. Which one of the following represents the main international legally binding instruments to protect the rights of indigenous peoples?

- A. Universal Declaration on Human Rights
- B. The International Covenant on Civil and Political Rights
- C. The ILO Convention No. 169 concerning Indigenous and Tribal Peoples
- D. The Framework Convention for the Protection of National Minorities

E. The International Covenant on Economic, Social and Cultural Rights

12. Which of the following is wrong about the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW)?

- A. CEDAW addresses all kinds of discriminatory practices experienced women everywhere.
- B. CEDAW does not consider every differentiation as discrimination.
- C. CEDAW goes beyond the reach of the narrow concept of formal equality.
- D. CEDAW sets its goal as equality of opportunity and equality of outcome.
- E. CEDAW contains some gaps to ensure effective protection of women's rights.

13. The right to adequate standard of living is a broad concept. As such, it covers many rights. Which one of the following right does not fall within the ambit of the right to adequate standard of living?

- A. The right to food
- B. The right to housing
- C. The right to work
- D. The right to clothing
- E. The right to clean water

14. Which one of the following is wrong about the Ethiopian Human Rights Commission (EHRC).

- A. The EHRC has a constitutional basis.
- B. The EHRC is accountable to the House of Peoples' Representatives.
- C. The EHRC is mandated to conduct investigation in respect of maladministration.
- D. The EHRC is structurally an independent organ of the federal government.
- E. The EHRC promotes protection of human rights.

4.1. The system of human rights promotion and protection under the United Nations has dual bases: the charter based system and the treaty based system. Write a short essay of not more than fifteen lines explaining the two systems. (10%)

2009

1. International Bill of Human Rights **does not consists** of:

- A. The International Covenant on Civil and Political Rights.
- B. The International Covenant of Economic, Social and Cultural Rights.
- C. The United Nations Charter.
- D. The Universal Declaration of Human Rights.
- E. Optional Protocol to the International Covenant on Civil and Political Rights

2. One of the following cannot be considered a guiding principle of the Convention on the Rights of the Child. Which **one is it**?
- A. Affirmative Action.
 - B. The best interest of the Child.
 - C. Respect for the views of the child.
 - D. The right to life, survival and development.
 - E. The principle of non-discrimination.
3. From the choices listed below, choose a condition that may entail rejection of communications by the African Commission on Human and Peoples' Rights.
- A. Compatibility with the African Charter on Human and Peoples' Rights.
 - B. Use of disparaging language directed against the state concerned.
 - C. Submitting communications after exhausting local remedies,
 - D. Submitting communications within a reasonable period after local remedies are exhausted.
 - E. Communications not exclusively founded on reports from the media.
- 4.1. Write an essay that explains the difference between human rights and other rights such as Legal rights! (10%)

RE exam 2009

7. Of the following, one **is correct** about claw-back clauses of the African Charter on Human and Peoples' Rights.
- A. They overlook the legitimacy test of limitation clauses.
 - B. They represent derogation clauses in the Charter.
 - C. They are akin to 'margin of appreciation' of the European human rights convention.
 - D. They fit in with the international human rights obligations of African States.
- They do not allow limitation of human rights at all
8. Which one of the following is wrong about the Convention on the Protection of the Rights of All Migrant Workers and Members of their families?
- A. The Convention provides for the establishment of a committee to monitor its implementation.
 - B. The Convention applies only to migrant workers who have legal entitlement to work within a country.
 - C. The Migrant Workers Committee is mandated to receive individual complaints of alleged violation of the Convention.

- D. The Convention does not apply to refugees.
 - E. In principle, the Convention applies to families of migrant workers.
9. One of the following is wrong about the Universal Declaration of Human Rights (UDHR).
- A. The UDHR has enshrined freedom of speech and belief, and freedom from want and fear as the highest aspiration of all people.
 - B. The UNGA has proclaimed the UDHR as a common standard of achievement for all peoples and all nations.
 - C. The UDHR provides for the creation of Commission on Human Rights.
 - D. The UDHR was adopted after the adoption of the American Declaration on Rights and Duties of Man.
 - E. The UDHR is still a very important human rights document.
10. One of the following is a prerequisite for permissible derogation of human rights. Which one?
- A. Derogation measures may be discriminatory on a certain ground.
 - B. Derogation measures may go beyond the extent required by the situation.
 - C. A state of emergency must be declared.
 - D. Derogation measures must include the moratorium of all derogable rights.
 - E. When adopted, derogation measures must cover all right.
11. Of the following one **is not** the component of the right to privacy.
- A. Information Privacy
 - B. Bodily privacy
 - C. Privacy of communications
 - D. Territorial privacy at public place
 - E. Privacy of residence.

Collected by Mikias Melak Birhanie

Mention three responsibilities of the UN High Commissioner for Human Rights (10%).